Fixing the Law Review Submission Game

Jake Arft-Guatelli and Andrew Baker

I. Introduction

Every spring and fall, thousands of manuscripts fill the inboxes of student-run law reviews across the country during submission periods. The process quickly deteriorates into a frantic cycle of offers, requests for expedited decisions, and rejections. Authors who receive an offer immediately seek to parlay it into something "better", quickly reaching out to notionally more prestigious journals to climb the publishing ladder. Student editors, inundated with submissions, are pressured to act quickly—sometimes within hours—on articles that they have clearly only had the time to skim. This unique system of publishing has its merits; while formal peer review in other disciplines has extended the time from submission to publication to multiple years, law professors are able to write and publish an article, with a full audit of citations, in a matter of months. However, a consensus has developed that stress on the system has tipped the balance of costs to exceed the benefits. The system of publishing American legal scholarship has become less a mechanism for identifying high-quality work than a repeated game of brinkmanship.

The contours of this system produce unacceptable burdens and inequities to both students and faculty. Student editors are deluged with submissions, often numbering in the thousands per cycle, something that academics themselves would never countenance. Editors inevitably resort to using proxies—author credentials, institutional affiliation, or existing offers from peer journals—as substitutes for meaningful review. Journals perceived to be lower-ranked shoulder a disproportionate burden, as they screen manuscripts that higher-ranked journals steal through expedited consideration. Authors feel forced to play the expedite game or risk being left behind, producing behavior that, while rational in the moment, is clearly distasteful with hindsight. This system distributes labor inefficiently, undermines careful editorial evaluation, perpetuates status inequities in the academy, and wastes enormous amounts of unpaid student time. In economic terms, the law review submissions market suffers from a textbook case of congestion and market failure.

Moreover, this dysfunctional structure is not the result of any deliberate design. Law reviews emerged in the late nineteenth century as hybrids of commercial legal journalism and student-edited publications, and this path dependency led to a divergence from the peer review practices that became standard in other disciplines. Whereas other fields employ blind review, single submissions, and slow but deliberate vetting, law reviews evolved toward mass submissions, non-anonymous review, and exceedingly compressed timelines. Although these peculiarities have hardened into convention, nothing about this practice is inevitable. Other professional fields facing similar problems of congestion and unraveling, in particular medical residencies and public school admissions, have successfully restructured their markets using centralized clearinghouses and matching mechanisms. Importantly, law reviews could retain the core attributes that make them unique (student editing, multiple submissions, quick decisions with a single round of review), while restraining the brinkmanship that creates unacceptable burdens.[1]

Critiques of law reviews are nearly as old as the system itself. In 1911, Justice Holmes derided law reviews as the "work of boys." In the decades since, judges, scholars, and practitioners have lamented the proliferation of journals, the uneven quality of articles, and the questionable benefit of using students as editors. The rise of interdisciplinary scholarship in law schools has encouraged these critiques: law students, lacking expertise in economics, statistics, or social science, are ill-equipped to evaluate much of the empirical work they publish. Reform proposals have arisen episodically, with commentators urging law reviews to adopt formal peer review, to return to the use of "exploding" offers with sharply limited acceptance windows, or to place greater responsibility in the hands of faculty advisors.

Each of these proposals have merit. Peer review would enhance the rigor of legal scholarship, but it is slow, costly, and difficult to coordinate. Disciplines that rely extensively on peer review are also frustrated with their publication process, especially when many (or most) reviewers are defaulting to the stochastic parrot that is generative artificial intelligence.[2] These costs may be particularly burdensome for the legal academy, where scholars frequently write in advance of cases with the hope of influencing the development of the law. The undeniable benefits of peer review have nonetheless driven some law reviews to adopt modified peer review processes. Exploding offers curtail the use of expedited decisions, but may skew incentives and invite backlash, as they have when previously adopted. Faculty involvement improves selection but cannot alone resolve the underlying incentive structure. What unites these reforms is that none fundamentally alters the dynamics of mass submission and expedited review.

This Article offers a new approach. Drawing on insights from economics and operations management, and the successful use of centralized matching in other two-sided markets, we propose redesigning the law review submission process as a coordinated matching market. In such a system, authors and journals would submit ranked preferences, and a deferred-acceptance algorithm would generate stable matches. This structure eliminates the offer-and-expedite game, distributes the burdens of review more evenly across journals, and gives both authors and editors greater predictability. Unlike prior reforms, it targets the systemic source of inefficiency: the misaligned incentives of decentralized submissions and ad hoc expedite requests. By replacing a chaotic bargaining game with a centralized matching mechanism, the law review system could

[1] Note that we are not arguing that we *should* retain the law review system for legal academic publishing, merely that one could while fixing certain clear market failures.
[2] Seongjin Hong, *My Paper Was Probably Reviewed by AI—and that's a Serious Problem*, Times Higher Education (Jul. 4, 2025), https://www.timeshighereducation.com/opinion/my-paper-was-probably-reviewed-ai-and-thats-serious-problem.

become more equitable, more efficient, and ultimately more conducive to high-quality scholarship.

The remainder of this Article proceeds in five Parts. Part II first provides a historical overview of the law review system, tracing its nineteenth-century origins and explaining its divergence from peer review in other academic disciplines. Part II then examines common critiques of the existing system, emphasizing the structural flaws of mass submissions, non-anonymous review, and the offer-and-expedite cycle. Part III reviews prior reform proposals, including peer review, exploding offers, and increased faculty involvement, and explains the advantages and disadvantages of each remedy. Part IV introduces the theory of two-sided matching markets and examines their successful application in medical residencies and public school admissions. Part V adapts this framework to the law review context, detailing how a centralized clearinghouse could operate, how preference rankings could be collected, and how adoption could be incentivized. Part VI considers potential limitations and open questions, including the challenges of incomplete adoption, increased student workloads, and the need for type-specific quotas to produce balanced issues. We conclude by situating our proposal within broader debates about the future of legal scholarship and the institutional design of knowledge markets.

II. The Law Review

Law reviews are unlike almost any other form of publication in academia.[3] Rather than have submissions reviewed by their peers (colloquially known as "peer review"), law students act as editors.[4] Rather than single or double-blind submissions, author identity and credentials are frequently disclosed.[5] Rather than binding single submission, non-binding mass submissions are standard.[6] This unique mode of publication is largely a historical artifact of the development of law reviews.[7]

This section begins with a historical overview of law reviews, tracing their roots back to the legal periodicals of the early 19th century. We take a brief foray into the development of peer review to help illustrate why law reviews chose a different route. We then review the current landscape of law reviews, and the challenges that a more effective publication scheme would have to address.

A. Historical Backdrop of Law Reviews

[3] Barry Friedman, *Fixing Law Reviews*, 67 Duke L.J. 1297, 1305 (2018).
[4] *Id*. at 1305-06.
[5] *Id.*
[6] *Id.*
[7] *See* Michael I. Swygert & Jon W. Bruce, *The Historical Origins, Founding, and Early Development of Student-Edited Law Reviews*, 36 UC Law SF L.J. 739 (1985).

Legal scholarship has traced the origin of the law review (and many of its unique features) to the legal periodicals which emerged in the early 19th century.[8] To understand the incentives for legal periodicals, it is helpful to provide a picture of the contemporary publications in legal scholarship.

Perhaps the canonical form of legal scholarship is the treatise. Typically dense expositions on doctrinal issues, treatises have a long history, from Littleton's *Tenures* in medieval England, to Coke's *Institutes* in the 1600s, to Hale's *Analysis* in 1713, to Blackstone's *Commentaries* in the 1760s.[9] Early American legal scholars followed this tradition, e.g., James Kent's *Commentaries* in the 1820s and Joseph Story's *Commentaries* in the mid-1800s.[10] These treatises often had tremendous influence over the common law, but were lengthy and doctrinal works, rather than consistent and up-to-date publications.[11] Complementing the treatise in early American legal publication was the law report—essentially a collection of case summaries that emerged in the 1780s and has endured into modern legal practice.[12]

Legal periodicals first surfaced in the early 1800s, functioning as commercial legal journalism.[13] This was in response to the demand for casual and informative legal news, written effectively for the practitioner.[14] Lay newspapers were either inaccurate in reporting the impact of cases or fatally incomplete.[15] Encyclopedic treatises were inevitably too slow, and law reports lacked analysis or commentary.[16] Moreover, unlike in England, American law was already becoming increasingly decentralized, with lawyers spread across the nation in rapidly varying jurisdictions that saw daily changes to the common law.[17]

Early periodicals were launched to meet this demand. The first was *the American Law Journal and Miscellaneous Reportery*, which ran from 1808 to 1817.[18] The journal largely published case reports, but in adding a modicum of analysis, acted as the catalyst for the more analytical periodicals to come.[19] Similar journals followed, notably the *United States Law Intelligencer and Review*, a commercial publication which launched the prototype of a lead article in 1829.[20] It failed after only three volumes.[21]

By the mid-1800s, legal periodicals found firmer commercial footing. In Philadelphia, Asa Fish and Henry Wharton launched the *American Law Register*, successfully bringing an

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[8] *Id.*; *see also* Michael L. Closen & Robert J. Dzielak, *The History and Influence of the Law Review Institution*, 30 Akron L. Rev. 1 (1997).
[9] Swygert & Bruce, *supra* note 7, at 742-44.
[10] *Id.* at 745-46.
[11] *Id.* at 743.
[12] *Id.* at 748.
[13] *Id.* at 751.
[14] *Id.* at 750.
[15] *Id.*
[16] *Id.* at 751.
[17] *Id.*
[18] *Id.* at 752.
[19] *Id.*
[20] Closen & Dzielak, *supra* note 8, at 9.
[21] *Id.*

academic-professional bent to a commercial journal.[22] The journal featured lead articles, followed by notes on recent decisions and other noteworthy legal news.[23] Perhaps critical to its success (or at least its credibility) was the journal's eventual operation by a board of legal practitioners, jurists, and scholars. By 1895, the board included William Draper Lewis, then the dean of the University of Pennsylvania Law School, who arranged for the journal to be edited by his school's students and eventually renamed as *The University of Pennsylvania Law Review*.[24]

The other prominent journal of the time was the *American Law Review*, a quarterly periodical out of Boston first published in 1866.[25] Even more than the *American Law Register*, the *American Law Review* was distinguished by its theoretical appeal, with its first issue presenting five lead articles aimed at national and conceptual interests.[26] While this academic orientation was something of an outlier among contemporary journals, it effectively provided a baseline for the student-led journals to come.[27]

In contrast to the theoretical inclinations of the *American Law Review*, most commercial publications retained a professional focus.[28] This was perhaps best exemplified by the *Albany Law Journal* (1870-1908) which attained national success with weekly publications taking sharp stances on the full array of contemporary legal issues.[29] Unsurprisingly, a slew of imitations were launched during the same period, with varying degrees of success.[30]

Beyond setting the standard for professional-style periodicals, the *Albany Law Journal* also served as a direct inspiration for the first student-run law review.[31] Launched in 1875, the *Albany Law School Journal* ran for only a year and served as a chronicle of local events and a repository for general discussions on legal academia.[32] Ten years later, Columbia law students followed suit, launching the weekly *Columbia Jurist*.[33] Running for two years, the *Jurist* followed its predecessor in mixing school matters, external journalism, and articles from Columbia professors.[34]

In 1887, inspired by the *Columbia Jurist*, Harvard law students launched the *Harvard Law Review*, largely following the same format as its predecessors.[35] Faculty support was critical to its success, especially from James Barr Ames, who backed the idea throughout his tenure, and contributed many lead articles from the review's outset.[36] Indeed, the review provided an outlet for increased faculty publication, benefiting both faculty, by providing a venue to publish, and

[22] Swygert & Bruce, *supra* note 7, at 755-56.
[23] *Id.* at 756.
[24] *Id.* at 756-57.
[25] *Id.* at 757.
[26] *Id.*
[27] *Id.* at 758-59.
[28] *Id.* at 759.
[29] *Id.* at 760-61.
[30] *Id.*
[31] *Id.*
[32] *Id.* at 764-65.
[33] *Id.* at 766.
[34] *Id.* at 767-68.
[35] *Id.* at 770.
[36] *Id.* at 771.

students, by legitimizing the review (later court citations would help further cement the influence of law reviews).[37]

The success of the *Harvard Law Review* spawned similar projects at other elite law schools: Yale in 1891, Pennsylvania in 1896, Columbia in 1901, Michigan in 1902, and Northwestern in 1906.[38] Yale largely followed Harvard's model, Columbia did as well at the insistence of its dean, Michigan originally opted for a faculty-run scheme, and Northwestern adopted an Illinois-centric review.[39] Part of the incentive may have been to keep up with Harvard, part to provide students with editing opportunities.[40] But reviews also began in ad hoc fashion—Yale students launched their journal, while Pennsylvania's dean handed editing responsibility of the *American Law Register* to his students, and Michigan faculty launched their review independently with minimal student involvement.[41]

The adoption by six elite schools established the law review as a standard feature of a modern legal education.[42] In 1930 there were 43 law reviews, by 1942 there were 55, by 1955 there 78, and by 1997 there were over 400.[43] The modern law review follows the same rough shape of its ancestors, but has grown substantially longer and emphasizes not just faculty articles but student essays.[44] There has also been a proliferation of the specialty journal, designed to enable more students to obtain journal experience and provide an outlet for specialized faculty publications.[45] There are now over 200 such journals.[46]

B. A Brief Detour into the History of Peer Review

Given the historical context in which law reviews emerged, it is perhaps not surprising that peer review was never adopted. While the refereeing practice of editing long predates law reviews (and was in use when early English treatises were being published), "peer review" as a term was really only coined in the 1970s.[47] But the history of the practice reaches back to the 17th Century, with the Royal Society of London and its publishing standards and methods for *Philosophical Transactions*.[48] This history essentially consists of refereeing, a practice which emerged out of a need for some way of distributing editorial labor.[49] At the time, the Royal society looked like a gentleman's association of amateur scientists, rather than a formalized

[37] *Id.*
[38] *Id.* at 779.
[39] *Id.* at 784-86.
[40] *Id.* at 780.
[41] *Id.* at 756, 784.
[42] *Id.* at 786-87.
[43] Closen & Dzielak, *supra* note 8, at 12.
[44] *Id.*
[45] *Id.* at 13.
[46] *Id.*
[47] Noah Moxham & Aileen Fyfe, *The Royal Society and the Prehistory of Peer Review*, 61 The Historical Journal 863, 864 (2018).
[48] *Id.*
[49] *Id.* at 871, 873-75.

professional institution.[50] As more members joined and article submissions increased, refereeing became the norm at the Society throughout the late 19th and early 20th century, albeit somewhat uniquely among scientific publications writ large.[51] The *British Medical Journal* also used refereeing methods as early as the 1870s.[52] The increasing professionalization of the Society led to editorial reform in the 1960s; at this point the Society was behind the times with mere single-blind submissions.[53] Still, refereeing only became standard practice at *Nature* in 1973, and peer review was only heralded as the standard in 1989.[54] Humanities and social science publications have a shorter history: the *English Historical Review* emerged in 1886 (a year before the *Harvard Law Review*) and the *American Historical Review* in 1895.[55] Adoption of peer review is much later still—the *Cambridge Historical Journal*'s use of double blind review dates only to the 1990s.[56]

This history paints a picture of a slow development of refereeing, which was only formalized as peer review in the past 50 years. Once established as the norm in science, other disciplines followed suit—at this point, peer review is the standard for academic rigor in most fields. Law reviews, given their distinctive historical antecedent as commercial journalism, simply filled a different niche. Of course, law professors make substantial use of refereeing during the writing and editing process. The distinction is that law review editors, unlike all other academic editors, do not.

C. Current Landscape

There is a long tradition of criticizing the law review system. Some common critiques include that there are too many reviews, that everything gets published, the dubious value of its scholarship, that student editors are unqualified for their position, and that faculty editors and/or peer review is superior.[57] When it launched in 1906, the *Illinois Law Review* wrote that the "the field for law reviews… is already overcrowded."[58] Writing from the bench in 1911, Holmes called law reviews the "work of boys."[59] Proposals for faculty management date back to 1929 (at this point the path of faculty leadership seen at Michigan and Northwestern was the clear minority, and students were taking an increasing role even at those journals).[60] While such early critiques often targeted the academic content of reviews,[61] the norm since the 1940s has been to

[50] *Id.*
[51] *Id.* at 883.
[52] JC Burnham, *Evolution of Editorial Peer Review*, 263 Journal of the American Medical Association 1325 (1990)
[53] Moxham & Fyfe, *supra* note 47, at 886.
[54] *Id.* at 887.
[55] *Id.* at 888.
[56] *Id.*
[57] Friedman, *supra* note 3, at 1299-1300.
[58] *Editorial Notes*, 1 Ill. L. Rev. 39 (1906).
[59] Closen & Dzielak, *supra* note 8, at 6.
[60] Clarence M. Updegraff, *Management of Law School Reviews*, 3 U. Cin. L. REv. 115, 119 (1929).
[61] *See, e.g.,* Fred Rodell, *Goodbye to Law Reviews*, 23 VA. L. Rev. 38 (1936).

criticize the efficacy of student editors.[62] Part of the argument rests on the claim that student editors have become ineffective as legal scholarship has become increasingly interdisciplinary—the audience of law reviews is not the generalist, but an academic with expertise in another field (e.g., economics, statistics, public policy, feminism).[63] Law students, as the argument goes, are not equipped to offer substantive criticism, so instead authors are inundated with obsessive footnoting and low quality stylistic edits.[64]

Another major issue is the selection of articles. The sheer number of submissions is particularly to blame here, partially due to an increase in junior faculty seeking tenure who are driven to publish (a response to the academic needs of increasing numbers of law students).[65] The most selective journals can receive over 4,000 submissions, with the median journal receiving between 1,000 and 2,000.[66] But the real culprit, it is generally held, is the practice of accepting applications en masse rather than via single submission, which "horrifies practitioners of scholarly disciplines, whose journals are refereed."[67] Electronic submissions via Scholastica and ExpressO have exacerbated the problem, with journals now receiving thousands of submissions in compressed periods twice a year.[68] The timing of these cycles is such that relatively inexperienced student editors are in charge of selection.[69] Inundated with a deluge of articles, student editors rely overwhelmingly on author credentials as a proxy for article selection.[70] Access to credentials creates a strong in-school selection bias (i.e., a law review at a given school publishes more work from its professors than appears justified), which empirically lowers the average article quality.[71]

In response, faculty are induced to play the "offer-and-expedite" game.[72] Illustration by parody:

> When you receive the initial offer, you should tell the editor who calls you how wonderful and important you consider his/her/its journal. The editor will respond by telling you how wonderful and important he/she/it considers your article. Once this ridiculously false cross-flattery is concluded and you've hung up the phone, you should begin desperately searching for a journal higher on your list so you're not stuck with the

[62] Friedman, *supra* note 3, at 1300.
[63] Richard A. Posner, *Law Reviews*, 46 Washburn L.J. 156, 157-58 (2006).
[64] *Id.* at 156.
[65] Erik M. Jensen, *The Law Review Manuscript Glut: The Need for Guidelines*, 39 J. Legal Educ. 383 (1989).
[66] Brian Galle, A Proposal for Law Journal Publication Reform, Substack (Dec. 13, 2019), at 5, https://medium.com/whatever-source-derived/a-proposal-for-law-journal-publication-reform-bf834958959f.
[67] Jensen, *supra* note 65, at 384.
[68] *See* Leah M. Christensen & Julie A. Oseid, *Navigating the Law Review Article Selection Process: An Empirical Study of Those With All the Power—Student Editors*, 59 S.C. L. Rev. 175, 203-04 (2007)
[69] Friedman, *supra* note 3, at 1313.
[70] *Id.* at 1315, Appendix fig 4; *see also* Christensen & Oseid, *supra* note 68, at 191; Jason P. Nance & Dylan J. Steinberg, *The Law Review Article Selection Process: Results from a National Study*, 71 ALB. L. Rev. 565, 583 (2008), Richard A. Wise et al., *Do Law Reviews Need Reform? A Survey of Law Professors, Student Editors, Attorneys, and Judges*, 59 Loy. L. Rev. 1, 43 (2013).
[71] Albert H. Yoon, *Editorial Bias in Legal Academia*, 5 J. Legal Analysis 309, 336 (2013).
[72] Friedman, *supra* note 3, at 1302.

> poor-quality journal that called you first. Pull out your list of 250 reviews, strike all those which already rejected you, strike all those worse than the one which made the offer, and begin calling the articles editors at every other review on your list. The key here is to bluff: make them think that the offer you have in hand is from a top-ten law review which is desperate to have you, and theirs is the only other review you would possibly consider.
>
> This bluffing is easy because you will invariably be speaking to an answering machine.[73]

Unfortunately parody and truth align in the above, with the caveat that expedite requests can now come in waves—after receiving an offer, apply to the ten or fifteen journals ranked higher, get a new offer, repeat.[74] The negative implications of offer-and-expedite are fairly obvious: editors are pressured to make decisions rapidly and sacrifice the quality of decisions along the way, there is no chance for faculty or expert input, and authors are forced to play the game or fall behind.[75] A 2018 survey found that over 40% of offers were in response to expedite requests.[76] Authors are strongly incentivized to engage in the activity, because in the law review applications market submitting everywhere is optimal absent limited resources.[77]

Nonetheless, legal scholars have consistently offered defenses of the law review system. One fairly uncontroversial point is that student editors do a good job of fact checking and conforming to the Bluebook.[78] One might argue that the system works in the sense that articles are matched, and the top journals get the "best" articles, where best is defined by their lower ranked peer journals.[79] But this unfairly allows the very highest ranked journals to reap the benefits from the labor of their lower ranked peers, who must struggle to find articles among authors who use them as a stepping stool in the offer-and-expedite game.[80]

One other note on law review submissions: it represents a clear example of a market failure.[81] The only reason they "are not broke is because they are subsidized."[82] This subsidy consists not only of the free labor of hundreds of law students, but also frequently a majority of the review's budget comes from its school.[83]

A common proposal is to shift to peer review, some form of which is usually widely supported.[84] Central implementation problems aside, choice of form is a difficult question.[85] Studies among European law journals show a strong interest in peer review, but an equally strong

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[73] C. Steven Bradford, *As I Lay Writing: How to Write Law Review Articles for Fun and Profit*, 44 J. Legal Educ. 13, 30 (1994) (footnotes omitted). Today, it very well may be an email inbox instead.
[74] Friedman, *supra* note 3, at 1314.
[75] *Id.*
[76] Galle, *supra* note 66, at 5.
[77] Timothy T. Lau, *A Law and Economics Critique of the Law Review System*, 55 Duquesne L. Rev. 369, 379 (2017).
[78] *See* Steven Lubet, *Law Review vs. Peer Review: A Qualified Defense of Student Editors*, 2017 U. of Illinois L. Rev. 1 (2017).
[79] Friedman, *supra* note 3, at 1329.
[80] *Id.* at 1337.
[81] *Id.* at 1321.
[82] *Id.*
[83] *Id.* at 1322.
[84] *Id.* at 1356.
[85] *Id.*

view that culture and fragmented forms of peer review constitute a barrier.[86] One challenge here is the choice of peer—professors surely qualify, but attorneys and judges could, and, depending on subject area, arguably should, be included.[87] Moreover, peer review is notoriously slow, which presents a steep barrier for doctrinal work written during, or in advance of, pending litigation. Finally, much legal scholarship is nakedly normative rather than objective, and it is not clear what use peer review would serve in such a setting.[88]

To recap, law reviews suffer from a number of well-known problems. While the rest of the academy embraces single or double-blind peer review, single submission with binding offers, length limits, and a slow schedule in pursuit of quality, law reviews are non-anonymous student reviews, featuring mass submissions, lengthy articles, and a relatively fast publishing timeline.[89]

III. Prior Law Review Reform Proposals

This section takes a deeper look at previous law review reform proposals. We look in particular at peer review, exploding offers, and various forms of increased faculty involvement. These approaches have different advantages: full-fledged peer review enjoys a high level of rigor, and when paired with exclusive submissions, eliminates the offer-and-expedite game.[90] Exploding offers also dispense with the offer-and-expedite problem, but are extreme and have faced pushback from top law reviews in the past.[91] More measured solutions, such as including peer review without exclusive submission, or including varying degrees of increased faculty involvement, offer slight improvements without solving the offer-and-expedite problem.[92]

A. Peer Review

Given the dominance of peer review in the rest of the academy, it is unsurprising that peer review has been frequently proposed by critics of the law review system.[93] Some form of peer review generally seems to enjoy wide support.[94] One study of 2000 faculty, students, and attorneys found widespread endorsement and agreement that student editors' "level of legal knowledge hurts the ability of law reviews to select the best articles."[95] However, another study of attorneys, judges, and professors found a strong endorsement for student editing and

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[86] Jadranka Stojanovski, Elías Sanz-Casado, Tommaso Agnolini, and Ginevra Peruginelli, *Peer Review in Law Journals*, 6 Frontiers in Research Metrics and Analysis 1 (2021).
[87] Friedman, *supra* note 3, at 1358.
[88] Adam J. Levitin, *It's Time to Get Rid of Law Reviews*, Credit Slips (June 21, 2025, 8:23 PM), https://www.creditslips.org/creditslips/2025/06/its-time-to-get-rid-of-law-reviews.html.
[89] Friedman, *supra* note 3, at 1305-06.
[90] *Id*. at 1356.
[91] Michael D. Cicchini, *Law Review Publishing: Thoughts on Mass Submissions, Expedited Review, and Potential Reform*, 16 U.N.H. L. Rev. 147 (2017)
[92] James Lindgren, *An Author's Manifesto*, 61 U. Chi. L. Rev. 527, 535 (1994).
[93] Friedman, *supra* note 3, at 1356.
[94] *Id.*
[95] Wise et al, *supra* note 69, at 48-49.

selection.[96] Participants echoed classical defenses of student journals, namely, that students bring a "fresh approach" as they are "less vested in conventional paradigms" and "already do a decent job."[97] As a key caveat, most participants said they would prefer some level of faculty supervision or participation.[98] Many law reviews currently use and profess a strong preference for a modified, extremely short peer review consistent with law review timelines as part of the article selection process.[99]

While some measure of peer review has support, the choice of form remains a challenge.[100] Faculty are certainly peers, but so too are judges and attorneys, which mounts a substantial central coordination challenge.[101] One approach to coordination is to adopt a form of open peer review, in which articles are opened up to entirely voluntary comments.[102] This approach has had mixed results outside of legal scholarship; a 2006 attempt by *Nature* yielded few comments and is generally regarded as a failure, while a 2010 attempt by the *Shakespeare Quarterly* yielded hundreds of comments on four articles and was viewed as a success.[103] *Econometrica*, one of the flagship journals in economics, recently began accepting short (one page or less) online comments to peer-reviewed, published papers.[104]

Other variants of open peer review exist.[105] In Latin American legal scholarship, the standard is double-blind peer review (both author and review are anonymous), a "sharp contrast" with North American law journals.[106] A variant of open peer review, in which identities are disclosed at some point during the review, has previously been adopted by the *British Medical Journal* and has been proposed in the legal setting to speed up reviews, align incentives, and render biases more visible.[107] To be clear, single or double-blind peer review suffers from a number of known flaws: it is relatively slow, reviewers have low incentives, author anonymity is far from perfect, and reviewer biases are exacerbated by reviewer anonymity.[108] These challenges

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[96] Max Stier, Kelly M. Klaus, Dan L. Bagatell & Jeffrey J. Rachlinski, Law Review Usage and Suggestions for Improvement: A Survey of Attorneys, Professors, and Judges, 44 STAN. L. REV. 1467, 1502 (1992)
[97] *Id.* at 1503.
[98] *Id.*
[99] *See, e.g.,* Article Submissions, *Stanford Law Review*, https://www.stanfordlawreview.org/submissions/article-submissions/; Submissions to the Law Review, *U. Chicago Law Review*, https://lawreview.uchicago.edu/submissions; Submissions Instructions, *Columbia Law Review*, https://www.columbialawreview.org/submissions-instructions/; Peer Review Board, *Northwestern Law Review*, https://northwesternlawreview.org/submissions/peer-review-board/.
[100] Friedman, *supra* note 3, at 1358.
[101] *Id.*
[102] *Id.* at 1327.
[103] *Id.* at 1327-28.
[104] *See* Editorial Procedures and Policies, Econometrica, https://www.econometricsociety.org/publications/econometrica/information-authors/editorial-procedures-and-policies#:~:text=DISCUSSION%20BOARD%2C%20MEMBER%20COMMENTS%20ON%20PAPERS%20IN%20ECONOMETRICA,-Beginning%20with%20the&text=These%20comments%20will%20only%20be,be%20of%20interest%20to%20readers.
[105] Yeimy Garrido-Gallego, *Open Peer Review for Evaluating Academic Legal Publications: The "Antidote" to an "Ill" Blind Peer Review*, 23 Tilburg L. Rev. 77 (2018)
[106] *Id.* at 77-78.
[107] *Id.* at 85-86.
[108] *Id.* at 81-82.

are serious, and have engendered calls for reform across the sciences and social sciences.[109] Law professors, who often write articles in advance of pending legislation or disputes, may find this limitation particularly prohibitive.

There in fact have been a number of experiments with peer review in law reviews.[110] Perhaps the most well known is the *South Carolina Law Review*'s pilot program and subsequent Peer Review Scholarship Marketplace (Prism).[111] Initially an experimental issue in 2008, the editors allowed multiple submissions, set clear timelines, and ran double-blind peer review primarily as an additional evaluation tool for student editors, who retained final decisions over article selection.[112] Volunteer peer reviewers were drawn from faculty and judges.[113] Prism builds on this experiment, and journals can opt in.[114] An author then submits to as many Prism journals as she wishes, the *South Carolina Law Review* arranges for double-blind peer review of the submitted article, and provides the results to Prism member journals, who then make offers which the author declines or accepts.[115]

Existing proposals offer myriad approaches to incorporating peer review into law journals. Traditional double-blind peer review puts faculty reviewers in control of article selection, whereas Prism makes it a tool for student editors.[116] Different variants of open peer review allow for reduced central coordination[117] or reduced anonymity to avoid classical flaws of peer review.[118] The above proposals sketch some of the choice points one has in adding formal peer review to law journals.

B. Exploding Offers

An alternative approach aimed at eliminating the offer-and-expedite game is the "exploding offer."[119] Rather than allowing authors to consider offers for a week, with *ad hoc* extensions (to shop for expedited decisions), an author would be given a fixed time to consider the offer (e.g., eight hours), dramatically decreasing the ability to force an expedited offer.[120]

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[109] Kelly‑Ann Allen, Jonathan Reardon, Joseph Crawford & Lucas Walsh, *The Peer Review System Is Broken. We Asked Academics How to Fix It*, The Conversation (July 24, 2022), https://theconversation.com/the-peer-review-system-is-broken-we-asked-academics-how-to-fix-it-187034.
[110] John P. Zimmer & Jason P. Luther, Peer Review as an Aid to Article Selection in Student-Edited Legal Journals, 60 S.C. L. REV. 960 (2009)
[111] *Id.* at 973.
[112] *Id.* at 965-68.
[113] *Id.*
[114] *Id.* at 973.
[115] *Id.*
[116] *Id.* at 965.
[117] Friedman, *supra* note 3, at 1327.
[118] Garrido-Gallego, *supra* note 103, at 85-86.
[119] Cicchini, *supra* note 89, at 147.
[120] *Id.* at 163.

Law reviews have used exploding offers before.[121] Originally adopted in order to secure the best articles, and with timelines ranging from days to mere minutes, the practice effectively ended in 2011 following an agreement among a number of elite law journals to not issue exploding offers, ostensibly over concerns that the practice resulted in rushed decisions that reduced the quality and variety of articles.[122] Most of those journals actually provided fairly generous consideration periods. In practice, lower-ranked journals tended to use exploding offers to increase their odds at securing worthy articles (which higher ranked journals had less need to consider).[123]

Given this history, a proposal to return to the use of exploding offers might seem surprising. However, an example demonstrates the potential for exploding offers to ameliorate the submission game. Suppose there is an objective ranking of journals, and the journal ranked 100 by authors announces pre-submission season that it will only be making exploding offers.[124] In theory, this should remove the incentive for an author to submit to that journal, unless they are genuinely interested and willing to publish there (the exploding offer makes a good-faith expedite request impossible).[125] As a result, the journal only receives submissions worthy of their attention, i.e. from authors who would actually publish in the journal if they were accepted.[126] If all journals adopt exploding offers, the current paradigm is effectively flipped: elite journals receive the initial majority of applicants and turn down most authors, who then move on to the next best, and so on.[127] Rather than lower ranked journals screening for top journals, and articles moving upstream via expedited submission, top ranked journals do more of the work and articles move downstream as they are rejected.[128]

Given mass adoption, exploding offers theoretically block the offer-and-expedite game. While they shift proportionally more labor to top journals, the end result is likely less disproportionate than the current scheme. However, mass adoption represents a real challenge for this reform—top journals are major beneficiaries of the current scheme, and actively fought exploding offers when they were previously adopted by lower ranked journals seeking to improve their offer-acceptance rate.[129]

C. Increased Faculty Involvement

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[121] *See* Paul Caron, *Elite Law Reviews End "Exploding Offers"*, TaxProfBlog (Apr. 19, 2011), https://taxprof.typepad.com/taxprof_blog/2011/04/elite-law-reviews.html; Orin Kerr, *Group of Law Reviews Adopts Position Against Exploding Offers: Will Other Journals Follow?* The Volokh Conspiracy (Apr. 19, 2011), https://volokh.com/2011/04/19/important-group-of-journals-agree-to-end-exploding-offers-will-other-journals-follow/.
[122] Caron, *supra* note 119.
[123] Kerr, *supra* note 119.
[124] Cicchini, *supra* note 89, at 164.
[125] *Id.*
[126] *Id.*
[127] *Id.* at 164.
[128] *Id.*
[129] Caron, *supra* note 119; Kerr, *supra* note 119.

Another popular reform proposal is for greater faculty involvement, ranging from advisory roles to comprehensive management. In 1994, James Lindgren called for faculty to reassert control over law reviews, both by providing formal instruction to student editors and by taking an active role in selection.[130] Lindgren alternatively suggested adopting the symposium format, where faculty controlled the article selection process, but students otherwise ran the journal.[131] This approach was very successful for the *Chicago-Kent Law Review*, which adopted it in the late 1980s and jumped from relatively obscurity to one of the top twenty law journals when measured by citations.[132]

For a lighter variant of faculty involvement, Lindgren suggested editorial seminars (used by Michigan pre-1994) in which a faculty advisor and a subject-matter expert read articles with student editors during the selection process.[133] This can also be seen as a formalization (with less peer review) of the *South Carolina Law Review*'s 2008 experiment.[134] Other proposals call for faculty to take a managerial role; for instance, Christian Day has called for student editors to be overseen by professional faculty editors and advisors (again echoing Michigan's approach pre-1994).[135]

This section does not represent an exhaustive account of past reform proposals. Timothy Lau has also suggested a variety of pecuniary reforms that might reduce the incentives for mass submissions, including shifting to fees on publication rather than submission, dispensing with fees entirely, structuring fees to punish high numbers of submissions, and strengthening the relationship between journal acceptance and rank so that the probability of acceptance at a lower journal is always at least as high as the probability of acceptance at a higher ranked journal.[136] This last method could be implemented if rejection at one journal automatically rejects at higher journals, and would eliminate the offer-and-expedite game entirely, albeit in a fairly extreme manner.[137]

Brian Galle, writing for the AALS Section on Scholarship, Advisory Committee on Law Journal Reform, suggests limited submission with mandatory acceptance (LSMA).[138] The basic idea is to limit the number of submissions authors may send at one time (e.g., to 10 or 20 journals) and make the first received offer binding.[139] Authors then send out new waves of applications once they have been rejected by the previous wave; much like exploding offers, LSMA forces authors to apply in small, manageable batches to their preferred journals. There are other proposed reforms, but they broadly fall in the space outlined above, striking a balance between incorporating peer review and faculty supervision.

[130] Lindgren, *supra* note 90, at 535.
[131] *Id.* at 535.
[132] *Id.* at 536.
[133] James Lindgren, *Reforming the American Law Review*, 47 Stan. L. Rev. 1123, 1225-26 (1995)
[134] Zimmer & Luther, *supra* note 108, at 960.
[135] Christian C. Day, *The Case for Professionally Edited Law Reviews*, 33 Ohio Northern U. L. Rev. 563, 586 (2007).
[136] Lau, *supra* note 73, at 393-394.
[137] *Id.* at 395.
[138] Galle, *supra* note 66, at 7. Galle also discusses a variant of the deferred acceptance algorithm which we consider at length in Sections V and VI.
[139] *Id.*

IV. Two-Sided Matching Markets

In this section, we introduce Gale-Shapley stable matching as a potential alternative. Our proposal for stable matching is still student reviewed, but can incorporate single or double-blind review and requires binding offers. This approach also eliminates the offer-and-expedite game discussed above, and has been successfully used in other areas of society that face similar incentive problems.

In 2012, Lloyd Shapley and Alvin E. Roth received the Nobel Prize in economics for their theoretical and applied work on stable matching in two-sided markets (David Gale, who pioneered Gale-Shapley matching with Shapley, passed away in 2008).[140] In a matching market, parties must be chosen by their prospective matches, rather than having price control allocation completely.[141] Two-sided matching markets require that a party both chooses, and is chosen by, her match.[142] Labor markets and college applications are common examples—employers and colleges chose which candidates to offer or admit, and candidates chose where to ultimately study or work, with price (wages and tuition) merely playing a factor in that choice.[143]

In their original paper, Gale and Shapley focused on two simple two-sided matching markets: college admissions and marriages.[144] The marriage case is an especially simple version: consider a community with n men and n women, each of whom has a strict preference ranking over their potential partners, and a community matchmaker who is tasked with creating a stable set of marriages.[145] A match is unstable if there is a man and a woman who prefer each other to their current matches, formally, there is some unmatched pair m_i and w_j such that m_i prefers w_j to his current match w_l and w_j prefers m_i to her current match m_k, for i, j, l, k below n.[146]

Gale and Shapley proved that under these conditions, there is always a stable match.[147] The proof relies on a simple algorithm, sometimes called deferred-acceptance:

> Step 1. Each man proposes to his highest ranked woman. Each woman tentatively accepts the proposal from her highest ranked man, and rejects the rest.
>
> Step k. Each man rejected in step $k - 1$ proposes to his highest ranked woman who has not yet rejected him. Each woman tentatively accepts the proposal from her highest ranked man, and rejects the rest.

Eventually, each w has a proposal and is tentatively paired with some m. All tentative matches are now locked in and the resulting set is stable in the sense defined above.[148]

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[140] The Royal Swedish Academy of Sciences, The Prize in Economic Sciences 2012, https://www.nobelprize.org/prizes/economic-sciences/2012/popular-information/.
[141] Alvin E. Roth, *Marketplaces, Markets, and Market Design*, 108 Am. Econ. Rev. 1609 (2018).
[142] *Id*. at n.10.
[143] Roth, *supra* note 141, at 1612.
[144] David Gale & Lloyd Shapely, *College Admissions and the Stability of Marriage*, 69 The American Mathematical Monthly 9 (1962).
[145] *Id.* at 11.
[146] *Id.* at 10.
[147] *Id.* at 12.
[148] *Id.* at 13.

The college admissions case is a simple extension in which colleges accept more than one applicant, replacing single acceptance with acceptance of the highest ranked *q* applicants, where *q* is the school's quota.[149] Deferred-acceptance results in a set of matches that is at least as good for every applicant as any other stable set of matches.[150] Roth later proved that such problems always have a stable solution, and that deferred-acceptance is strategy-proof on the applicant side, i.e., that applicants have no incentive to misrepresent their true preferences when submitting rankings.[151] But in a general matching problem, i.e., with n candidates and m institutions, each of whom accepts a quota q_i, there is in fact no match which is both stable and strategy-proof on both sides.[152]

We next look at two of the most famous implementations of centralized two-sided matching markets: medical residencies and public school admissions.

A. Examples (Medical Residency, Public Schools, etc.)

Matching in medical residencies has a long history. To practice medicine independently, graduates of medical schools must complete a residency at a hospital. In the early twentieth century, a surplus of available positions resulted in the hiring market unravelling as offers were made increasingly early and participants who were too slow were left out of the process.[153] Various attempts were made in the 1940s to avoid further unraveling by way of no-offer periods, which failed due to strategic maneuvering on both sides.[154] No-offer periods increased the use of exploding offers and overall market congestion, as the market thickened rapidly during a short period of time and the existing allocation method proved too slow to clear.[155] In the mid-1950s, a collection of groups suggested a centralized clearinghouse that roughly predicted Gale-Shapley matching: the interview process would go on as before, but both sides would submit rankings over the other and a deferred-acceptance algorithm would produce a stable match.[156] Roth and Pearson updated the algorithm in the 1980s as married pairs of medical students became more common (the original algorithm could not guarantee a stable match with couples); this updated algorithm is still used by the National Resident Matching Program today.[157] Here is a simple illustration of medical matching in action:[158]

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149 *Id.* at 14.
150 *Id.*
151 Alvin E. Roth, *The Economics of Matching: Stability and Incentives*, 7 Mathematics of Operations Research 617, 620, 624 (1982).
152 *Id.* at 627.
153 Roth, *supra* note 141, at 1622; *see also* Alvin E. Roth, *The Evolution of the Labor Market for Medical Interns and Residents: A Case Study in Game Theory*, 92 J. Pol. Econ. 991, 992 (1984); Alvin E. Roth & Xiaoling Xing, *Jumping the Gun: Imperfections and Institutions Related to the Timing of Market Transactions*, 84 American Economic Association 992, 994, 996 (1994).
154 Roth, *supra* note 141, at 1622.
155 *Id*.
156 *Id.* at 1623-34.
157 *Id.* at 1625.
158 For an illustration of how the modified algorithm works, *see* How It Works: The Matching Algorithm, National Resident Matching Program, https://www.nrmp.org/intro-to-the-match/how-matching-algorithm-works/.

Let Alice, Bob, Cora, Dave, Erin, and Frank be graduating medical students. Let City, General, and Mercy be hospitals with two openings each. Our preference profiles are given as follows:

Hospital Rankings			
	City	**General**	**Mercy**
1	Erin	Bob	Alice
2	Frank	Cora	Dave
3	Alice	Dave	Erin
4	Cora	Alice	Bob
5	Dave	Frank	Cora
6	Bob	Erin	Frank

Student Rankings						
	Alice	**Bob**	**Cora**	**Dave**	**Erin**	**Frank**
1	City	City	City	City	City	General
2	General	Mercy	General	General	General	City
3	Mercy	General	Mercy	Mercy	Mercy	Mercy

The algorithm defined above runs as follows:

<u>Step 1:</u>

Alice, Bob, Cora, and Erin propose to City. Frank proposes to General. City tentatively accepts Alice and Erin, and rejects Bob, Cora, and Dave. General tentatively accepts Frank.

At the end of step 1, the tentative matches are City (Alice, Erin), General (Frank, empty), and Mercy (empty, empty). Rejected applicants are Bob, Cora, and Dave.

<u>Step 2:</u>

Bob proposes to Mercy. Cora and Dave propose to General. Mercy tentatively accepts Bob. General tentatively accepts Cora and Dave, rejecting Frank.

At the end of step 2, the tentative matches are City (Alice, Erin), General (Cora, Dave), and Mercy (Bob, empty). The rejected only applicant is Frank.

Step 3:

Frank proposes to City. City tentatively accepts Frank, rejecting Alice.

At the end of step 3, the tentative matches are City (Erin, Frank), General (Cora, Dave), and Mercy (Bob, empty). The only rejected applicant is Alice.

Step 4:

Alice proposes to General. General rejects Alice.

At the end of step 4, the tentative matches are City (Erin, Frank), General (Cora, Dave), and Mercy (Bob, empty). The only rejected applicant is Alice.

Step 5:
Alice proposes to Mercy. Mercy tentatively accepts Alice.

At the end of step 5, the tentative matches are City (Erin, Frank), General (Cora, Dave), and Mercy (Alice, Bob). There are no rejected applicants.

Now that there are no rejected applicants, the tentative matches are now locked in. The final result is: City (Erin, Frank), General (Cora, Dave), and Mercy (Alice, Bob). One can check that this is stable by running through each applicant:

- Alice would prefer to be at City or General, but City prefers Erin and Frank, and General prefers Cora and Dave.
- Bob would prefer to be at City, but City prefers Erin and Frank.
- Cora would prefer to be at City, but City prefers Erin and Frank.
- Dave would prefer to be at City, but City prefers Erin and Frank.
- Erin is at her top choice.
- Frank would prefer to be at General, but General prefers Cora and Dave.

And again by running through each hospital:

- City has its top choices.
- General would prefer to have Bob than Dave, but Bob prefers Mercy.
- Mercy would prefer to have Dave or Erin than Bob, but Dave and Erin both prefer City or General.

This is sufficient to show that there is no pair (applicant, hospital) which prefers each other to their current matches, and the resulting match is stable.

Several factors likely account for the enduring success of the medical residency match. The nature of the market is helpful here: large numbers of early-career applicants go on the market in one wave, and both applicants (medical school graduates) and hospitals are well-known to each other. Since the match is stable, everyone gets the best available outcome within the given match.[159] Because applicants cannot improve their prospects by misrepresenting their preferences, opportunities to game the system are reduced.[160] Many of the problems of the old system are also successfully eliminated: computerized matching is extremely fast, so matching acts as a centralized clearinghouse in the market.[161]

This is not to say that the resulting system is flawless: opportunities still exist to game the system; for instance, competitive specialities like neurosurgery and orthopedics now suggest that students complete weeks-long on-site auditions before the formal matching process.[162] The motivation behind these auditions is to confirm that students will rank them near the top, and students have responded by completing multiple such on-site visits.[163] Such "gamification" is not unexpected, medical matching is a variant of the general matching problem, and while it is stable and strategy proof against misrepresenting one's first choice, the same is not true for one's *k*th choice.[164]

A second major example of two-sided matching markets is public school choice selection in New York and Boston. Originally, New York City public schools adopted a decentralized approach in which students applied to five schools, which slowly accepted their favorite candidates, then parents re-applied, and so on.[165] The market was heavily congested, and schools frequently ran out of time to consider all applicants, forcing administrators to assign large swaths of students to schools they did not prefer.[166] Roth recognized that the market for public schools was similar to the medical resident labor market, and proposed a centralized clearinghouse using a modified deferred-acceptance algorithm.[167] Under the new approach, families rank up to 12

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[159] Roth, *supra* note 151, at 620.
[160] *Id.* at 624.
[161] Roth & Xing, *supra* note 153, at 997-99.
[162] *Id.* at 1023-24.
[163] *Id.*
[164] Roth, *supra* note 153, at 1003.
[165] Edward L. Glaeser, *A Review Essay on Alvin Roth's Who Gets Whatt—and Why*, 55 Journal of Economic Literature 1603, 1612 (2018).
[166] Roth, *supra* note 141, at 1627.
[167] *Id.*

schools and submit these lists to a central coordinator, who also receives rankings from the schools and runs the algorithm.[168] Although take-up was initially slow, success led to rapid adoption across New York City.[169] While over half of students were administratively assigned under the old decentralized system, students are now largely assigned to schools over which they have expressed a preference with deferred-acceptance.[170] Public school systems in Boston, Denver, Washington, D.C., Newark, New Orleans, Camden, Indianapolis, and Chicago have since adopted Roth's matching algorithm.[171] Variations on the algorithm also allowed schools to capture certain priorities, e.g., Boston administrators believed children should go to school near their neighborhoods, and a technical fix in which neighbors bump outsiders at the end of the algorithm resolves this problem.[172]

Many other markets arguably share features conducive to centralized matching, including judicial clerkships,[173] American law firms,[174] postseason college football bowl games,[175] academic job markets, [176] college sports recruiting and early admissions, Swiss apprenticeships, collegiate Greek life, and kidney transplants.[177]

B. Benefits and Critiques

Al Roth has identified several shared features among markets that have adopted centralized clearinghouses. These markets are generally structurally similar: positions become vacant at the same time and applicants come primarily from a well-defined set of candidates (e.g., medical and grade school students in their final year).[178] This homogeneity among both candidates and hospitals or schools makes organization feasible.[179] Moreover, preference formation is cheap, as interview costs are relatively low, whereas for more senior candidates preferences might not be formed until a candidate has also looked into jobs for spouses and schools for children.[180] Finally, it is difficult to obtain practical buy-in from a sufficiently large proportion of the market unless the market is functioning poorly.[181]

Roth and Xing articulated a four-stage framework for analyzing the development of matching markets.[182] In Stage 1, the market is initially created, for instance when hospitals began offering internships at the start of the 20th century, or when Congress created federal court

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168 Glaeser*,* *supra* note 165, at 1612.
169 *Id.*
170 Roth, *supra* note 141, at 1628.
171 *Id.* at 1629.
172 Glaeser, *supra* note 165, at 1613.
173 Roth & Xiang, *supra* note 153, at 1001.
174 *Id.* at 1004.
175 *Id.* at 1007.
176 *Id.* at 1027.
177 Roth, *supra* note 141, at 1621, 1638.
178 Roth *supra* note 141, at 1631.
179 *Id.*
180 *Id.*
181 *Id.*
182 Roth & Xing, *supra* note 153, at 996.

clerkships.[183] As the market grows, it begins to unravel: offers are made increasingly early and participants find themselves with narrower choices until offers start being made so early that there are few distinguishing features among candidates.[184] Stage 2 is characterized by decentralized efforts to halt unravelling, typically by instituting no offer periods before a certain point.[185] If successful, the market reverts to Stage 1; if unsuccessful, the market grows more chaotic and congested until it advances to Stage 3.[186] The markets for American law firms and federal court clerks are arguably examples of modern Stage 2 markets.[187] Stage 3 involves the adoption of a centralized clearinghouse, e.g., Gale-Shapley matching, sports-style drafting, or overlapping contracts among conferences.[188] For certain markets, like some medical residency specialities or fraternity and sorority recruitment, Stage 3 may be the final evolution of the market.[189] Others progress to Stage 4, where unraveling occurs despite a centralized clearinghouse, as seen above with competitive medical specialities, like neurosurgery, effectively pre-screening candidates via on-site auditions before submitting rankings.[190]

Further signs that subspecialties in medical matching may be in Stage 4 is evidenced by recent complaints and critiques of the system. In 2002, a number of physicians sued the National Resident Matching Program and other organizers, alleging that the matching program violated federal antitrust law and compressed compensation for residents.[191] Congress, in turn, exempted medical matching from possible antitrust violations, finding the matching program to be an efficient procedure.[192]

There have also been calls for reform within the matching system. Increasing the number of applicants may not pose a computational burden for a centralized clearinghouse, but it does impose additional costs on interviewers, many of whom are forced to rely on proxy statistics when evaluating substantially more candidates than they can interview.[193] Students suffer as well, with some claiming that the "educational value of the fourth year of medical school… is eroding."[194] A number of proposals have been made, including to limit applications per applicant, to add program-specific applications, or to single out preferred programs (enabling hospitals to focus on those who inform them that they are preferred).[195] These concerns, and their proposed

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[183] *Id.* at 996.
[184] *Id.*
[185] *Id.*
[186] *Id.*
[187] Christopher Avery, Christening Jolls, Richard A. Posner, and Alvin E. Roth, *The Market for Federal Judicial Law Clerks*, 68 U. Chi. L. Rev. 1, 9 (2001).
[188] Roth & Xiang, *supra* note 153, at 997.
[189] *Id.* at 1029-32.
[190] *Id.* at 1023.
[191] Kristin Madison, *The Residency Match: Competitive Restraints in an Imperfect World*, 42 Hous. L. Rev. 759, 764 (2005).
[192] *Id.* at 763; *see also* Richard Weinmeyer, *Challenging the Medical Residency Matching System through Antitrust Litigation*, 17 American Medical Association Journal of Ethics 147, 149 (2015).
[193] Anne G. Pereira, Christopher M. Williams, and Steven V. Angus, *Disruptive Innovation and the Residency Match: The Time is Now*, 11 Journal of Graduate Medical Education 36 (2019).
[194] *Id.*
[195] *Id.* at 36-37.

reforms, align with a Stage 4 market—in spite of a centralized clearinghouse, overall costs to formulate preferences are high, so the market begins to unravel as hospitals seek a proxy for genuine interest.

Matching markets in public schools have also been criticized for the high cost of formulating preferences.[196] Some cities also use algorithms that are not strategy-proof; where misrepresenting one's preferences can be advantageous.[197] Boston, New York, and Denver use algorithms which incentivize truthful preferences, while Charlotte, Barcelona, and Beijing induce strategic play.[198] Empirically, many families err in their understanding of matching mechanisms and underestimate the results of lower rankings, significantly reducing the welfare gained by adopting the mechanism (as opposed to using a strategy-proof algorithm).[199]

While centralized clearinghouses can handle high numbers of applicants in both cases, an increase in applicants can raise the costs for both sides to formulate and express preferences. Both medical residencies and public schools suggest that market design requires careful attention to the potentially increasing cost of preference formulation.

V. Applying Matching Markets to Law Review Submissions

In this section we discuss how to apply the two-sided matching markets discussed in Section IV to the market for law reviews described in Section II and Section III. In Section V.A., we provide a brief overview of the current state of affairs. In Section V.B., we discuss the details of the proposed matching algorithm. In Section V.C., we provide a sample timeline for submissions via matching markets. Section V.D. looks at means of incentivizing buy-in and enforcement.

A. Recap: the Current State of Law Review Submissions

We begin by briefly describing the current state of law review submissions. The submission model has two major cycles for submission: spring and fall, beginning in February and August.[200] Most journals open for manuscript submissions during these periods.[201] Journals frequently receive thousands of submissions during each period, leaving student editors inundated with submissions.[202] In 2023, the average offer was received 18 days after submission,

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[196] Rose Jacobs, *When Students Are Matched to Schools, Who Wins?*, Chicago Booth Review (Aug. 26, 2019), https://www.chicagobooth.edu/review/when-students-are-matched-schools-who-wins.
[197] *Id.*
[198] Adam Kapor, Christopher A. Neilson, and Seth D. Zimmerman, *Heterogeneous Beliefs and School Choice Mechanisms*, National Bureau of Economic Research Working paper 25096, (Sep. 2018), https://www.nber.org/system/files/working_papers/w25096/w25096.pdf.
[199] *Id.* at 204.
[200] Scholastica Law Review Submission Insights: 2025 Edition, Scholastica, https://scholasticahq.com/law-review-submissions-insights/
[201] *Id.*
[202] *See* Christensen & Oseid, *supra* note 68, at 204.

and the average rejection after 29 days.[203] Once offers begin rolling in, authors are able to play the offer-and-expedite game, parlaying an offer from one journal into expedited consideration from higher ranked journals as discussed in Section II.C.[204]

There exist considerable differences among journal submission policies and procedures. In general, specialist journals open earlier or simply stay open year round.[205] Variation in procedures include when the journal opens, exclusivity, peer review, and anonymity. For instance, the *Harvard Law Review* continuously accepts articles (holding them for the next cycle), encourages exclusive submissions, features limited peer review, and is single-blind.[206] The *Stanford Law Review* opens for the fall cycle in mid-July, encourages exclusive submissions, features limited peer review, and is (almost) double-blind.[207] The *UCLA Law Revie*w opens for the fall cycle in August, accepts only via Scholastica, and features on-request empirical review (a limited peer review for manuscripts involving significant novel empirical work).[208] The *Michigan Law Review* opens for the fall cycle in August and is single-blind.[209] This list is far from exhaustive, but nonetheless suggests the variation available to journals in setting their submission policies and procedures.

It is also helpful to look at the current state of law review submissions in the context of Roth's analysis of two-sided markets. The biannual submission cycles, minimum one-week offer period, and requests for exclusive submissions suggest a Stage 2 market, in which unraveling is well underway and decentralized efforts are actively being made to prevent further unraveling.[210] This mirrors the medical residency market prior to its adoption of a centralized clearinghouse.[211] Nonetheless, decentralized efforts are insufficient—journals are free to open submissions whenever they choose and can use exclusivity requests to enhance their odds of obtaining their preferred articles.[212] Moreover, the market remains heavily congested, with student editors reporting thousands of submissions and subsequently relying on proxy heuristics to review those submissions.[213] The offer-and-expedite game can be viewed as a decentralized response to this congestion, as it enables authors and student editors to shortcut the default review process. But the offer-and-expedite approach not only fails to clear the market quickly, it also distributes labor unevenly and reduces journals' opportunities to seriously review articles.[214]

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[203] Scholastica Law Review Submission Insights: 2025 Edition, Scholastica, https://scholasticahq.com/law-review-submissions-insights/
[204] Friedman, *supra* note 3, at 1302.
[205] Law Review Submission Center, Scholastica, https://scholasticahq.com/law-review-submission-season-hq/#open-reviews (Accessed 29 July, 2025).
[206] Submissions, *Harvard Law Review*, https://harvardlawreview.org/homepage/submissions/.
[207] Article Submissions, *Stanford Law Review*, https://www.stanfordlawreview.org/submissions/article-submissions/.
[208] Submissions, *UCLA Law Review*, https://www.uclalawreview.org/submissions/.
[209] Submissions, *Michigan Law Review*, https://michiganlawreview.org/submissions/.
[210] Roth & Xing, *supra* note 153, at 996.
[211] Roth, *supra* note 141, at 1622.
[212] See, e.g., Submissions, *Harvard Law Review*, https://harvardlawreview.org/homepage/submissions/.
[213] *See, e.g.,* Christensen & Oseid, *supra* note 68, at 175; Nance & Steinberg, *supra* note 67, at 565; Wise et al, *supra* note 67, at 1.
[214] Friedman, *supra* note 3, at 1314.

The current market also shares many factors common to medical residency and school choice that make centralized clearinghouses effective. The relevant factors here are synchronized openings, well-defined sides to the market, cheap preference formulation, and poorly functioning current markets.[215] Openings for manuscripts become vacant generally at the same time, i.e., in the two major submission cycles.[216] Applicants, here authors submitting manuscripts, are homogenous in the relevant sense, i.e., manuscripts take the same general form. Manuscripts and journals are sufficiently well-defined to make organizing a centralized clearinghouse feasible. Indeed, the foundations for a central platform already exist; most journals accept through centralized platforms like Scholastica and ExpressO.[217]

Preference formulation is relatively cheap for authors, as there are many resources ranking journals, and established authors likely already have preferences.[218] But preference formation is expensive for journals, who are inundated with thousands of manuscripts over which to form preferences. Indeed, high preference costs are exactly why journals often use proxies for manuscript quality, occurring both in the initial review and during the offer-and-expedite process (where an offer from a lower-ranked journal acts as a proxy for a manuscript's quality).[219] Again, the medical residency context is salient—hospitals face significant costs in interviewing large numbers of students, and these costs in part have led to on-site auditions to generate a proxy for student interest.[220] Of course, preference formation will be at worst as expensive as it is now under a centralized clearinghouse, and journals possess the capacity to review thousands of manuscripts at present, even if this involves some degree of proxy-use in evaluation.[221] One benefit of a centralized clearinghouse is that it shifts the burden of reviewing towards a more even distribution of labor across journals.

Finally, centralized clearinghouses require significant buy-in, which generally means that the existing market must be performing poorly. Surveys suggest dissatisfaction with the submission market, implying that the market is performing poorly enough to enable a shift towards a Stage 3 centralized clearinghouse.[222] In the residency context, waiting lists with last minute movements and a variety of failed reforms from 1945 to 1950 created an environment in

[215] Roth *supra* note 141, at 1631.
[216] Scholastica Law Review Submission Insights: 2025 Edition, Scholastica, https://scholasticahq.com/law-review-submissions-insights/
[217] Christensen & Oseid, *supra* note 68, at 203-204.
[218] *See, e.g.,* Ignacio Cofone & Pierre-Jean G. Malé, *How to Choose a Law Review: An Empirical Study*, 71 Journal of Legal Education 311 (2022); Brian Galle, *The Law Review Submission process: A Guide for (and by) the Perplexed*, Medium, https://medium.com/whatever-source-derived/the-law-review-submission-process-a-guide-for-and-by-the-perplexed-9970a54f89aa.
[219] Friedman, *supra* note 3, at 1313.
[220] Roth & Xing, *supra* note 152, at 1023-24.
[221] Aaron Sibarium, *Harvard Law Review Axes 85 Percent of Submissions Using Race-Conscious Rubric, Documents Show*, the Washington Free Beacon, https://freebeacon.com/campus/exclusive-harvard-law-review-axes-85-percent-of-submissions-using-race-conscious-rubric-documents-show/.
[222] *See, e.g.,* Christensen & Oseid, *supra* note 68, at 175; Nance & Steinberg, *supra* note 67, at 565; Wise et al, *supra* note 67, at 1.

which the serious problems of the match were widely recognized.[223] In the school choice context in New York, the old uncoordinated approach included several rounds which dramatically increased time for offers, wait list decisions, and acceptances to clear the market while also providing strategic incentives for applicants.[224] In the 2002-2003 cycle, this congestion reached the point that the first two rounds, which actually accounted for student preferences, only placed about half the students, leaving the other half for administrative assignments that did not reflect their preferences.[225] This provides a useful benchmark for levels of congestion which prompt reform. We look more at incentivizing buy-in for reform in Section V.D., but first, we consider the actual mechanisms of our proposed match.

B. Mechanism/How It Could Work

Our proposed mechanism closely tracks Gale-Shapley matching discussed in Section IV.A. Here we are tasked with matching n manuscripts to m journals, where each journal has a quota q_i of available spots for publication. We define author-proposing deferred acceptance as follows:

> Step 1: Each author proposes to her highest ranked journal. Each journal tentatively accepts its q_i highest ranked authors, and rejects the rest.
>
> Step *k*: Each author rejected in step $k-1$ proposes to her highest ranked journal which has not rejected her. Each journal tentatively accepts its q_i highest ranked authors, and rejects the rest.

This algorithm outputs a stable match, in the sense that there is no pair {*author, journal*} in which each member prefers the other to its current match.

This kind of algorithm is called "author-proposing" since it is the authors who "apply" to journals in each step. In one-to-one matching the upside of this is strategy-proofness.[226] Unfortunately, we are in many-to-one matching, and can only guarantee that it is suboptimal to misrepresent one's first choice.[227] Indeed, truthful representation is not a dominant strategy for all players, and if we want to preserve stability we can only have truthful representation on one side of the market.[228] It is likely better to follow the medical residency and school choice context for partial immunity to strategic ranking from authors, who have more knowledge and ability to rank strategically.

We now consider some of those alternatives, looking in particular at the rankings that participants will submit. We suggest that rankings should be incomplete, i.e., an author need not rank all journals, and vice versa. Indeed, incomplete rankings are standard in the medical

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[223] Roth, *supra* note 153, at 995.

[224] Atila Abdulkadiroğlu, Nikhil Agarwal, & Parag Pathak, *The Welfare Effects of Coordinated Assignment: Evidence from the New York City High School Match*, 107 The American Economic Review 3635, 3640 (2017).

[225] *Id.* at 3647

[226] Roth, *supra* note 153, at 1003.

[227] *Id.*; *see also* Alvin E. Roth, *Economics of Matching Stability and Incentives*, 7 Mathematics of Operations Research 623-25 (1982).

[228] Roth, *supra* note 153, at 1003.

residency case (where a student might prefer to be unranked than to end up at a certain hospital).[229] In New York public schools, students may only rank 12 of the possible schools, a deliberate choice to reduce the burden on applicants.[230] Allowing incomplete rankings enables authors and journals to specify parties with whom a match would be worse than being left unmatched. Authors have been known to prefer withholding a publication if they cannot obtain an offer from their desired set of journals, so allowing incomplete rankings is likely necessary for buy-in.[231]

The current NMRP algorithm enables strategic ranking past the first choice on both sides.[232] Nonetheless, the medical residency match has remained stable for decades, likely as a result of limited information surrounding competitor preferences, and an encouragement of honesty.[233] The law review market shares, to a relevant extent, the size and limited information of the residency context, suggesting similar stability could exist. Moreover, it seems unlikely that transient law review editors have enough incentive to figure out how to strategically rank articles to get around incentive compatibility constraints.

One choice is whether to allow ties in rankings (formally, this drops the typical asymmetry constraint on ranked lists). From a technical perspective, allowing ties is not problematic: one can break any tie randomly. In a brief example, suppose Alice and Bob both apply to Journal 1, which ranks them equivalently, flip a fair coin to see who is tentatively accepted at this stage. For authors, there is likely a strict hierarchy of journals, so they are unlikely to submit tied rankings anyway. For journals, the ability to submit ties might be desirable, especially since it reduces the preference formation costs in delineating between similarly ranked groups of articles. On the other hand, if journals rank large numbers of authors equally, then random (but fair) selection will have a correspondingly large role.

Another alternative is to run *tiered* deferred-acceptance, an approach intended to ensure that top applicants are matched with high-tiered firms. In this approach, firms are partitioned into tiers, and applicants apply to firms in each tier under classical deferred-acceptance.[234] Once matched within a tier, the match is final. This approach is common in China, where colleges are partitioned into specialized, academic, and vocational universities, and in Turkey, where the first tier consists of private schools and the second consists of public schools.[235] It is less obvious what tiers one might adopt in the law review market; while journals are ranked hierarchically, cutoffs are not as elegant as in Chinese or Turkish schools. Moreover, tiered deferred-acceptance is not strategy-proof, and can actually lead to placing lower-ranked applicants at higher-ranked

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229 How It Works: The Matching Algorithm, National Resident Matching Program, https://www.nrmp.org/intro-to-the-match/how-matching-algorithm-works/

230 Glaeser, *supra* note 161, at 1612.

231 Brian Galle, *The Law Review Submission process: A Guide for (and by) the Perplexed*, Medium, https://medium.com/whatever-source-derived/the-law-review-submission-process-a-guide-for-and-by-the-perplexed-9970a54f89aa.

232 Roth, *supra* note 153, at 1003.

233 *Id.*

234 Jiarui Xie, *Games Under the Tiered Deferred Acceptance Mechanism*, arXiv 1, https://arxiv.org/abs/2406.00455.

235 *Id.*

firms compared to classical deferred-acceptance, the opposite of the intended result.[236] This adverse result cuts strongly against adopting tiered deferred-acceptance.

In Section VI.B., we consider a more substantial change to the mechanism to capture journals' interest in a representative balance of articles.

C. Sample Timeline

This subsection provides a sample timeline for one submission cycle, demonstrating how a centralized system of journal allocations could operate. Our timeline is broadly consistent with current practice, though this need not be the case in practice. Our proposed timeline is as follows, where *T* represents the match day:

1. Registration (sometime before *T – 38*)
2. Submissions Open (*T – 38**)
3. Submissions Close (*T – 24*)
4. Review Period (*T – 24* to *T – 3*)
5. (Optional) Peer Review Period (*T – 24* to *T – 3*)
6. Ranking Date (*T – 1*)
7. Match Day (occurs on *T*)
8. Cleanup (after *T*)

We flesh out the details of each step in the timeline, the motivations for length of each step, and the actions parties are required to take during each step.

1. Registration (before *T – 38*)

Under our proposed framework, the registration period for authors and journals would begin at least 38 days prior to proposed match day. At this point, authors and journals would register their articles and openings for the current submissions cycle. If we assume the concurrent adoption of a peer review scheme concurrent with the allocative changes proposed here, then peer reviewers would also need to register by this point, indicating their interest, bandwidth (i.e. number of articles for which they would be willing to review), and area(s) of expertise.

In addition, if the allocation system adopts type-specific quotas, as explored in detail in Section VI.B, the centralized submissions platform would set the available types during this period. Authors would be required to identify the specific areas of focus for their articles, and journals would also submit their desired type quotas by this point.

2. Submissions Open (*T – 38**)

[236] *Id.* at 3-4.

Submissions will open and authors may submit manuscripts to the centralized platform once registration is complete. Note that nothing in our proposed timeline requires that journals open up for submissions on the same day; to the extent that journals finish registration earlier and prefer more time to review submissions, they can open their submissions at an earlier date.

Submissions will be blinded: authors are required to redact their names and other identifying characteristics.[237] For instance, a citation referring to a prior work of the authors should be rephrased (or the citation should be omitted) to avoid identification. Shifting to a centralized clearinghouse offers an opportunity to implement double-blind submission, which is standard practice elsewhere in the academy.[238] For a recent example of the benefits of blind submission, one can look to the University of Oregon's conclusion that its law review members discriminated against an author on the basis of national origin.[239] Redacting the author's name, and other identification including nationality and university, would reduce the risk of such editorial discrimination. This kind of anonymization is already adopted at several law reviews.[240]

If we are running type-specific quotas, then authors select up to three types from a dropdown menu provided by the centralized platform when submitting an article.[241]

3. Submissions Close ($T - 24$)

Submissions will close 24 days before match day. This choice is intended to provide ample time for journals to review their submissions and formulate article preferences. Again, nothing prevents journals from beginning to review articles in advance of the dedicated submissions period, but this timeline ensures that all journals have at least three weeks of uninterrupted time to review articles. Once the submissions window closes, all submitted articles become available to journals.

4. Review Period ($T - 24$ to $T - 3$)

Journals will review all manuscripts subject to their review during this period.[242] Data from Scholastica in 2023 indicates the average time from submission to acceptance is 18 days,

[237] It is our strong belief that a large change to the law review submission system should take the opportunity to adopt blinding of submissions, though again, nothing inherent to the matching algorithm requires this and the proposal could move forward in its absence.
[238] *See, e.g.,* Friedman, *supra* note 3, at 1305-06; Moxham & Fyfe, *supra* note 47, at 887.
[239] Eugene Volokh, *University of Oregon Concludes Law Review "Discriminat[ed] Based on Perceived National Origin" Against Israeli Author*, the Volokh Conspiracy (Aug. 23, 2025), https://reason.com/volokh/2025/08/23/university-of-oregon-concludes-law-review-discriminated-based-on-perceived-national-origin-against-israeli-author/#.
[240] *See, e.g.,* Submissions, *Harvard Law Review*, https://harvardlawreview.org/homepage/submissions/; Article Submissions, *Stanford Law Review*, https://www.stanfordlawreview.org/submissions/article-submissions/.
[241] Three is an arbitrary number, but a useful starting point.
[242] Some authors may choose not to rank a certain journal under variants of our proposal, in which case not all journals will be tasked with reviewing every article.

and time to rejection is 29 days.[243] Providing a three week review period strikes a balance. Past variations of this approach have suggested a 5 to 10 week period to accommodate peer review; our proposed period is shorter given that adoption of a peer review scheme in this model would follow the abridged practice of peer reviews currently used by law journals.[244]

Thorough review is critical for generating informed rankings, however, we also want to avoid unnecessarily extending the period of time from submission to decision. Because this proposal eliminates the time spent responding to expedite requests and extending unaccepted offers of publication, journals can hopefully use the saved time to more thoroughly engage with submissions.

We also propose that journals can ask clarifying questions of authors during this period. There are multiple ways of preserving a blind mechanism here. One approach, used by the *Stanford Law Review*, is to use a senior editor as an intermediary, coming as close as possible to double-blind procedure.[245] Extending this approach here, clarifying questions could be passed from the articles team to the senior editor to the author. The author's reply then returns via the editor. This process is partially double-blind, in that neither the author nor the articles team learn each others' identities, although both sides know the intermediary with whom they are interacting.

A better alternative is to use the centralized submissions platform as the intermediary rather than the editor. From a technical perspective, a centralized platform makes this easy. In this case, questions would appear for authors attached to their submissions, and identities could easily be redacted when asking and answering.

One natural upside of this approach is that questions (and answers) could be made public, essentially mimicking open peer review (with law review editors rather than peers). Since articles are generally already published as working papers for feedback well before submission, the public nature of this forum is unlikely to be a serious concern to authors.[246] This approach is currently used or tested in journals elsewhere in the academy, e.g., the *Journal of the American Medical Association* and *Econometrica*.[247]

5. (Optional) Peer Review Period (*T – 24* to *T – 1*)

Given that we are suggesting substantial reforms, there is a strong argument that legal academia should take the opportunity here to commit to peer review. We look here at how a peer review period, run contemporaneously with the main review period, could be implemented.

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243 Scholastica Law Review Submission Insights: 2025 Edition, Scholastica, https://scholasticahq.com/law-review-submissions-insights/.

244 Galle, *supra* note 68, at 8.

245 Article Submissions, *Stanford Law Review*, https://www.stanfordlawreview.org/submissions/article-submissions/.

246 Friedman, *supra* note 3, at 1300.

247 Commenting Policy, JAMA, https://jamanetwork.com/pages/commenting-policy; Editorial Procedures and Policies, Econometrica, https://www.econometricsociety.org/publications/econometrica/information-authors/editorial-procedures-and-policies.

Three weeks is admittedly a short window of time for a traditional peer review process, but some law reviews currently run similarly timed modified peer review practices.[248] While not delved into in detail here, one could envision various ways to incentivize law professors to participate.[249]

One approach would be to allow a centralized entity to distribute articles to the peer reviewers who registered under the registration step. This involves a centralized party making determinations as to the assignment of reviewers to articles on the basis of submitted expertise, and the author-selected types under which the article falls. Commentary from this review would then be attached to articles at the end of this phase. Note that current systems for review and acceptance to regularly scheduled law conferences, such as the American Law and Economics Association's annual meeting, already proceed along this model.

Another approach would be to allow peer reviewers to anonymously, but publicly, comment on articles in the style of open peer review. One could still preserve anonymity, but again, reviewers would have to be vetted by the centralized submissions platform. While it may be easier to implement, open peer review itself has mixed results in garnering enough commentary to be successful, suggesting that modified traditional peer review may be more successful.

A final alternative would be to shift the approach for review to occur entirely before the submissions period, in the style of working papers or arXiv preprints. This approach is common in computer science conferences, where streamlined peer review is done in advance of conference submissions.[250] Given that law reviews operate on shorter timelines than traditional peer reviewed journals, the streamlined nature of this approach may be attractive. We stress here that, while we strongly believe it would be a wasted opportunity to not formalize *some* measure of standardized review when changing the law review submissions process, nothing about the matching allocation requires this, and it could be adopted without any addition of peer review.

6. Ranking Date (*T* – *1*)

By *T* – *1* (the day before match day), authors and journals must have submitted their ranked-ordered lists. For authors, preference formation is cheap, owing to the well-established journal hierarchies discussed in Section V.A, and their lists could even be required at the time of submission. Journals will be required to submit their rankings with enough time to verify before match day.

7. Match Day (occurs on *T*)

[248] *See, e.g.,* Submissions, *Harvard Law Review*, https://harvardlawreview.org/homepage/submissions/; Article Submissions, *Stanford Law Review*, https://www.stanfordlawreview.org/submissions/article-submissions/. Moreover, one peer-reviewed law and economics field journal (the Journal of Law and Economic Analysis) requests peer reviews to be returned within a three-week period.

[249] Galle, *supra* note 68, at 16-17. For instance, in-kind compensation from law schools or guarantees of significant time and flexibility could be beneficial in increasing participation in a centralized peer review process, while this would be less helpful under a public comment approach.

[250] *See, e.g.,* Call for Papers, Computational Intelligence and Soft Computing, https://ciscom.org/call-for-papers/.

On match day, the centralized platform runs the matching algorithm using the submitted rankings from journals and authors, and then outputs a match. All matches are binding.

8. Cleanup (after *T*)

Following match day, it is entirely possible that some manuscripts will remain unmatched. Since there are unequal numbers of submitted manuscripts and available publication slots, this result is expected. And because there are usually more submitted articles than published articles, it is likely that some articles will remain unmatched.

This creates a question as to what happens to different unmatched parties if remaining publication slots remain. In the medical context, some residency programs sit outside of the match and are often a last resort for unmatched students,[251] which is a career altering negative outcome for medical students. The consequences seem less dire here, and any journals abstaining from the centralized system we propose could fill the gap. However, many author scan afford to sit on manuscripts to some extent (albeit not forever, and less so for early career professionals).

Other options include re-running a matching program on a shorter timeline, allowing a post-match free-for-all, or deferring any open spots to the next cycle.

D. Incentivizing Buy-In and Enforcement

We now discuss how to incentivize authors and journals to buy-in to our proposed approach. The advantages of adopting a centralized clearinghouse in this kind of market have been illustrated by the examples of the medical residency match and public school choice: a centralized clearinghouse provides stable matches, alleviates congestion, provides predictability, and reduces strategic manipulation of the market.[252]

Some benefits of adopting matching algorithms are unique to the law review market. A common critique of the current market is that it inequitably distributes labor—higher ranked journals can use the expedited requests from lower-ranked offers in their evaluation, disproportionately burdening lower ranked journals.[253] Under a matching algorithm, all journals review the same number of authors, namely, everyone in the pool.[254] While this may seem like an unbearable increase in labor for most journals, many already do substantial reviewing—for instance, the *Harvard Law Review* received over 3,000 submissions in 2024, and substantively evaluated 412 of them (having rejected the rest after an initial screen).[255] Heuristics used to

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[251] *See, e.g.,* Unmatched Applicants, AAMC Careers in Medicine, https://careersinmedicine.aamc.org/prepare-residency/unmatched-applicants.
[252] Roth, *supra* note 141, at 1624, 1630.
[253] Cicchini, *supra* note 89, at 150.
[254] This will not be true if we allow authors to choose not to rank some journals (and thus to not be considered by them under a binding matching allocation system).
[255] Aaron Sibarium, *Harvard Law Review Axes 85 Percent of Submissions Using Race-Conscious Rubric, Documents Show*, the Washington Free Beacon,

reduce the initial submissions are applicable to large submission sets.[256] Assuming a similar number of total submissions, higher-ranked journals would not face added cost in preference formation, and lower-ranked journals would no longer serve as a proxy labor source for their colleagues.

It is helpful to look at how other markets made the shift from decentralized standards to a centralized clearinghouse. In the medical residency context, the collection of groups that became the National Resident Matching Program essentially proposed a centralized clearinghouse and obtained rapid buy-in owing to the poor state of the market.[257] In school choice, Roth and several colleagues essentially designed the clearinghouse and pitched it to New York City's Department of Education, which recognized the poor state of the market.[258] The cases both involve widespread institutional recognition of a need for redesign in the market.

It is also helpful to consider proposals for a centralized clearinghouse in the federal clerkship market.[259] As briefly noted before, the clerkship market bears strong similarities to the other two-sided matching markets discussed so far, and is rife with congestion and indications of unraveling.[260] Avery et al. consider several centralized approaches to resolving this problem. To obtain support, the authors suggested that Supreme Court justices only accept clerks from courts who take part in the match.[261] Eight sitting justices took part in the authors' survey, and all favored this kind of approach.[262] Under such a scheme, participation is not absolute, but the congested part of the market (everyone who does not move extremely late) is captured elegantly by a top-down incentive structure.

This top-down institutional push seems promising in the law review context as well. In previous cases of market shift, high-ranking journals have been the key group behind paradigm changes like the end of the exploding offer.[263] While the hierarchy is less absolute among law review rankings than federal courts, past changes in the market still suggest that top journals can move market norms.[264] And while high-ranked journals may be the greatest beneficiary of the current system, they are still well off under the proposed approach. Moreover, if implemented correctly, a well-designed matching system would give all journals more time to review their large number of submissions.

Another alternative is to call for faculty encouragement of a centralized system. A minority of professors benefit from the current model, namely, those whose expedites enable them to climb the rankings. All authors should stand to benefit from a more predictable, cleaner centralized system.

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https://freebeacon.com/campus/exclusive-harvard-law-review-axes-85-percent-of-submissions-using-race-conscious-rubric-documents-show/.

[256] *Id.*

[257] Roth, *supra* note 141, at 1623.

[258] *Id*. at 1627-28.

[259] Avery et al., *supra* note 187, at 1.

[260] *Id.* at 5-8, 19, 29-30.

[261] *Id.* at 81-82.

[262] *Id.*

[263] *See, e.g.,* Caron, *supra* note 119; Kerr, *supra* note 119.

[264] Caron, *supra* note 119; Kerr, *supra* note 119.

We now consider possible enforcement mechanisms. One draw of the proposed model is that most parties tend to behave well when presented with a centralized clearinghouse.[265] Including an optional signalling period might also help provide a legitimate channel for parties to signal interest in each other, reducing under the table deals, but runs the risk of increasing market unravelling. An early decision track, accomplished via tiered deferred-acceptance, could also help provide a legitimate channel in the same vein.

Turning to more punitive enforcement, the most natural mode of sanctioning consists in suspension from participation in the matching program. In the medical residency context, sanctions typically involve temporary or permanent suspensions from engagement in the match.[266] This is a stronger deterrent for hospitals, who participate yearly, as opposed to residents, who only match once, although some post-residency programs also make use of the match, offering a future deterrent.[267] Given that law professors publish frequently, sanctions might seem more effective than they would against medical residency applicants.

Suspensions are somewhat inimical to early success of the market. In particular, this kind of centralized clearinghouse improves with high participation, so removing a high proportion of participants would be undesirable. Suspension is also a less serious threat to high-ranked journals, as authors might still be willing to submit to such journals even if doing so would subject them to sanctions, reducing the desired deterrent effect. In contrast, the threat is greater for early career offers, where professional damage from failing to publish is likely higher. Nonetheless, sanctions remain the natural enforcement mechanism here.

VI. Potential Limitations and Open Questions

This section begins by examining the market for federal court clerkships as an example of a market with significant barriers in the way of adopting a centralized clearinghouse. We then pivot towards a technical solution for another problem, namely, balancing the different types of articles that are matched with journals. We end with a series of open questions regarding the implementation and challenges faceted by a shift to a centralized submission system.

A. Potential Limitations

So far we have looked primarily at two-sided markets where centralized clearinghouses have proven to be effective solutions. We now consider a case where such reforms, although proposed, might not be as successful: the market for federal law clerks. At first glance, the federal clerkship market looks like a Stage 2 market full of decentralized attempts to control application timelines that are circumvented by individual actors.[268] Surveys of federal judges and

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[265] Roth, *supra* note 153, at 1003.
[266] The NRMP Match Policy, NRMP, https://www.nrmp.org/wp-content/uploads/2023/08/Violations-Policy_Ver.Aug2023.pdf.
[267] *Id.*
[268] Avery et al., *supra* note 187, at 1.

students find dissatisfaction with the process to be high, reflecting poorly on the bench.[269] Unraveling and congestion are substantial, exploding offers of fifteen minutes are not uncommon, and strategic maneuvering in arrangement of interviews and ignoring phone calls is commonplace.[270] The market also exemplifies how a small number of actors can rapidly unravel timelines. Some vocal and prestigious judges view early offers as "an important bargaining tool."[271] Such actors prefer the status quo, as a decentralized market enables "poaching", and students often accept the first offer they receive, providing a competitive edge for highly but not top-ranked judges.[272]

Christopher Avery, Christening Jolls, Richard A. Posner, and Alvin E. Roth consider adopting the medical residency match unchanged here, but conclude that informal agreements outside of the process pose too great a problem.[273] Unlike the medical residency case, where students apparently do not trust programs to hold their end of the deal in informal agreements, the authors feel that students would find federal judges to be trustworthy in informal negotiation, creating unraveling even in the face of a centralized clearinghouse.[274] Instead, the authors endorse a modification in which the Supreme Court agrees to draw only clerks from an opt-in matching program, thus forcing judges who wish to feed the Court to buy-in, and leaving others able to opt out.[275] Paired with affirmations of no prior agreements, this approach is intended to cut a balance uniquely tailored to federal court clerkships.[276] Despite a majority endorsement from the Court, this approach has yet to be adopted over 20 years later, and the clerkship market remains an example of a Stage 2 two-sided market. This is not to say that the market will never progress to Stage 3, merely that powerful institutional features present an obstacle and commentators have previously argued the efficiencies are outweighed by costs to judges.[277]

While high-ranked (and prestigious) law reviews benefit from the current system, our discussion in Section V suggests that a central clearinghouse would still serve them well. Unlike judges who rely heavily on early offers, some higher-ranked reviews might see their matches improve, as they no longer lose articles to slightly higher-ranked colleagues. Moreover, as mentioned earlier, depending on the length of time for the review window, every journal would retain a longer period to review articles under our proposal than under the status quo.

We now turn towards another challenge for author-proposing deferred acceptance: there is no guarantee of a balanced issue of matched articles. A journal might end up matched with entirely tax law articles, or solely articles written by authors from one school. This is a major flaw—in practice, journals care about producing balanced issues highlighting a variety of scholarly debates. Fortunately, there is a technical solution.

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[269] *Id.* at 14-15.
[270] *Id.* at 19, 26, 29-30.
[271] Alex Kozinski, *Confessions of a Bad Apple*, 100 Yale L.L. 1707, 1720 (1991).
[272] Avery et al., *supra* note 187, at 28.
[273] *Id.* at 75.
[274] *Id.* at 75-76.
[275] *Id.* at 81-82.
[276] *Id.* at 76-77.
[277] Annette E. Clark, *On Comparing Apples and Oranges: The Judicial Clerk Selection Process and the Medical Matching Model*, 83 Geo. L.J. 1711, 1789 (1995).

Recall that journals each submitted a quota q_i of available spots. We now refine those quotas to be *type-specific*.[278] We begin by defining a type space $T = \{t(1), ..., t(k)\}$, or a set of possible types, e.g., tax, constitutional, criminal, corporate, etc. We will also need a type function mapping each manuscript to a type.[279] Finally, we enrich the quota q_i of each journal with a vector $(q_{t(1)}, ..., q_{t(k)})$. Here $q_{t(1)}$ represents a quota on type $t(1)$, e.g., a journal willing to accept at most two tax and three securities law articles has the quota vector $(2_{tax}, 3_{securities})$. We require that $q_{t(j)} \leq q_i$ and $q_i \leq \sum_{t(j)} q_{t(j)}$, i.e., no one type-specific quota may exceed the total, and the total must be below the sum of maximum type-specific quota, respectively.[280] One can then impose further restraints on submitted preferences.

Following Atila Abdulkaridoğlu's work on type-specific quotas for college admissions, we say a list of manuscripts S_1 respects the constraints at a journal i if the size of S_1 is at most q_i and for each type $t(j)$, there are at most $q_{t(j)}$ manuscripts. We then need two more properties. Firstly, affirmative action: for each journal's ranked order list $>_i$, if a set of manuscripts S_1 respects the constraints at i and S_2 does not, then $S_1 >_i S_2$. Intuitively, journals must prefer a set of manuscripts which satisfies the quota they submitted. Secondly, restricted responsiveness: let S_1 and S_2 be sets identical save for S_1 contains manuscript s_1 and S_2 contains manuscript s_2. Further, S_1 and S_2 are both preferable to the null set. Then $S_1 >_i S_2$ if and only if $s_1 >_i s_2$. Where journals' preferences satisfy both affirmative action and restricted responsiveness, Abdulkaridoğlu proved that there exists a non-empty set of stable matchings under author-proposing deferred acceptance.[281] Moreover, the resultant match is at least as desirable to all authors as any other stable match and truthful revelation of preferences is a dominant strategy for all authors.[282] To illustrate, we provide an example of a situation screened out under the restrictions imposed for type-specific quotas:

Consider journals i and j with type-quotas $1_i= (1_x, 0_y, 0_z)$, $1_j = (0_x, 1_y, 1_z)$, i.e., each journal accepts one manuscript, specified to be of type x for journal i and either type y or z for journal z. Let a, b, and c be manuscripts with types x, y, and z, respectively. Let journal preferences be given by $b >_i c >_i a$ and $b >_j a >_j c$. Let manuscript preferences be given by $i >_a j$, $j >_b i$, and $j >_c i$. Ordinarily, c and i would be matched, as would b and j, and a would be left unmatched.

However, journal i's submission violates the affirmative action constraint at i, as singletons $\{b\}$ and $\{c\}$ do not respect the constraints at i while $\{a\}$ does respect the constraints, but per i's own submitted ranking, both $b >_i a$ and $c >_i a$. In other words, within this example, i must either rank a above b and c or change its type-specific quotas. This is fairly intuitive: if journal i says that it wants exactly one manuscript of type x, it cannot turn around and submit a

[278] See, e.g., Atila Abdulkaridoğlu & Tayfun Sönmez, *School Choice: A Mechanism Design Approach*, 93 the American Economic Review 729 (2003); Atila Abdulkaridoğlu, *College Admissions with Affirmative Action*, 33 International Journal of Game Theory 535 (2005).

[279] As a technical note, since we allow each manuscript to be associated with up to three types, our assignment will be a map rather than a function. Since the restraints imposed to obtain a stable match with type-specific quotas do not hinge on functionality, this is fine. One could also recover functionality via a type function from the set of manuscripts to the power set of the set of types, and then tweaking the constraints on ranked lists accordingly.

[280] Abdulkaridoğlu, *supra* note 278, at 540.

[281] *Id.* at 541.

[282] *Id.*

ranking where it prefers manuscripts which are not of type *x* to manuscripts which are of type *x*. While this example is somewhat extreme, it illustrates how choice of type-specific quotas is critical for journals, as it constrains the allowable set of rankings.

In practice, type-specific quotas are used in some residency programs where quotas are set on gender or specialization, and in some public schools where quotas are set to ensure desegregation and represent students with a broad range of ability.[283] Implementation here is fairly easy: the set of types is obvious, the type function can easily be implemented by asking applicants, and type vectors can easily be submitted by hospitals and schools.

This technical discussion demonstrates a means of capturing journals' preferences to have balanced issues which reflect what they believe to be the most representative spread of topics. However, capture is not perfect—journals will lose the ability to guarantee a particular spread, and may well end up with more or less of each type than they wanted. From a practical standpoint, this modification requires collecting additional information. Namely, we need to define the possible types with which a manuscript can be associated. Following Section V.B., this is left to the centralized mechanism. However, we suggest types focus on well-defined areas of legal scholarship, e.g., constitutional law or law and economics, at a fairly coarse grained level, e.g., tax law rather than partnership tax or corporate tax. During registration, journals submit their desired quota vectors.[284] These are private and used only in the matching algorithm. During submissions, authors may associate their manuscript with up to three types. This limit prevents authors from claiming a broad association of types for strategic manipulation.

The increased cost in preference formation here should be minimal—authors should know what type their manuscript fits, and journals are merely asked to provide their maximum number of manuscripts of each type. Here the cost seems low, in return for significantly enhanced control over the variety of subjects in each issue.

Of course, some journals do not want a representative sample of different types. Speciality journals, for instance, are interested entirely in one area of law. So for a specialty journal with type *t(j)*, the journal's quota q_i will be equal to its quota vector $(q_{t(j)})$. Type-specific quotas accommodate speciality journals easily, since the journal any manuscript with type other than *t(j)* unranked.

The actual implementation of type-specific quotas comes from imposing restrictions on submitted preferences. In particular, journal preferences must satisfy the affirmative action and restricted responsiveness properties. This is a formal requirement on submissions, i.e., a journal attempting to submit an unsatisfactory ranking must reorder and submit a valid ranking. While this approach enables journals to recover their desired spread of articles and authors, recovery is

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[283] *Id.* at 535-36.

[284] It would be possible to extend this same logic to speciality journals. For instance, on the base model, a specialty journal *i* with type *t(j)* submits a quota vector $q_i = (q_{t(j)})$. However, some specialty journals want to balance their subjects, e.g., an ecology journal balancing energy law, environmental justice, animal rights, and so on. The natural approach here would be to add corresponding subtypes in the case of specialty journals, extending the basic idea of type-specific quotas.

partial, and journals under this model have to give up the fine-grained level of control they currently have in exchange for the benefits of a centralized clearinghouse.

B. Open Questions

In this subsection we review open questions, including incomplete adoption of the centralized clearinghouse, authors who publish both in law reviews and in other areas of the academy, possible increased challenges for journal editors during the review period, and expected pushback and possible responses.

i) Incomplete adoption

Centralized matching markets work best when there is substantial buy-in. Yet, the history of public school choice suggests that adoption itself is often incomplete, posing a challenge for emerging or fragmentary systems.[285] Among other issues, it may prove difficult to induce authors to submit to a binding application process if their preferred journals have not yet committed to centralized matchmaking. Perhaps anticipating this problem, the history of the medical residency market suggests a solution. Rather than resorting to immediate adoption of a centralized clearinghouse in the 1950-51 cycle, administrators ran a trial in which they collected rankings from residents and hospitals, but ran the actual match using the old procedures.[286] This approach enabled them to test in real time how a centralized clearinghouse compared to current results, and the clearinghouse was adopted shortly afterwards.[287] A trial run in the same style offers a potential means of easing into reform, with the added benefit that mechanical and implementation questions are resolved before they can adversely affect any parties. Moreover, the data from such a trial run, when compared to the journal allocations in a given year, could prove compelling in leading parties to move towards adoption.

Regardless of specific implementation decisions, or whether to proceed incrementally with trials, adoption challenges seem possible. For a centralized system to displace ad-hoc submission protocols we need something approaching wholesale adoption on the part of the law reviews. History suggests that this may prove difficult, especially with ensconced "elite" journals who are beneficiaries (in some relevant sense) of the current system. We believe that the beneficial supply-side aspects of a centralized system, particularly an increased time for article review without being subject to expedite requests, will prove a benedict to *all* law reviews and editorial members. However, at the end of the day, law reviews are not structurally independent of their home schools, and to the extent that the academy decides that this is a necessary, or even worthwhile, improvement to the scholarly enterprise of its faculty members, we should be willing to cram down implementation as a continuing requirement of school resources and likeness..

[285] Glaeser*, supra* note 165, at 1612.
[286] Roth, *supra* note 153, at 996.
[287] *Id.*

ii) Authors who publish more broadly

Another open question concerns the status of authors who do not publish exclusively in law reviews, i.e., those who publish in other areas of the academy. The binding nature of our approach would still apply here. In effect, such authors would be forced to choose between pursuing publication through the proposed centralized law review clearinghouse and pursuing publication at another journal. In practice, this is unlikely to be a major concern, as journals in other areas of the academy generally require single submission in the first place.[288] In this case there is little change from the status quo, as authors already have to choose between pursuing a particular peer-reviewed publication or submitting more broadly across law reviews.

An author interested in testing an article in both the law review and alternative publishing venues could submit to the binding law review matching mechanism with rankings over the set of law reviews that they would prefer to publish in over their outside options. To the extent that they match with one of their ranked law reviews, they would be required to publish there, subject to whatever binding mechanism (like indefinite or temporary restriction from use of the centralized system going forward) exists. However, if they do not place with their preferred set, they would be free to submit afterwards to a single-submission journal, and would also be free to re-submit to law reviews in a later cycle. An author with preference for a peer-reviewed offer over law reviews would be able to submit outside of the centralized system, and could always (as they can now) submit more broadly to law reviews if their article is not accepted. In sum, nothing about centralizing the system for law review article allocation appears to impinge on authors who have broader publishing habits.

iii) Potential for increased student workload

A natural question in the context of two-sided matching markets is whether law reviews will be able to handle a potential increase in the number of articles to review. After all, a common criticism of the current model is that it overwhelms editors.[289] It is not entirely evident that forming a ranking over submissions, especially if you allow coarsened rankings, requires significantly more editorial evaluation than journals are currently engaged in. Journals are already in the business of reviewing thousands of articles, although they have clearly developed heuristics to manage this workload.[290]

One potentially concerning response is that some of the features of our reform—namely, blind submissions—could reduce the efficacy of those heuristics. A rejoinder to this concern is that any heuristic relying on information that would be redacted under blind submission is not socially worth using anyway, a criticism commonly levied at the use of proxy credentials in

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[288] *See, e.g.,* AER Submission Guidelines, American Economic Association, https://www.aeaweb.org/journals/aer/submissions.
[289] Friedman, *supra* note 3, at 1315.
[290] Sibarium, *supra* note 221.

evaluating articles.[291] More generally, law reviews are currently able to keep up with thousands of submissions while maintaining a partially blind review, which suggests they would be able to handle an increase in supply.[292] Our sincere hope is that the design of the new submissions portal would allow for more unobstructed time dedicated to article review than exists in the current system, which would mitigate any concomitant increase in workload. In practice, it is of course hard to know exactly how law reviews will respond until the system is actually tested.

Journals also sometimes choose to privilege fellows, junior faculty, or their own faculty as a matter of internal policy. This preference conflicts with single blind submissions, as this kind of identifying information is redacted. For instance, journals in other disciplines consider the career stage of authors and maintain blind review standards.[293] One approach is to simply allow authors to identify themselves as a fellow or a junior faculty member. It would be better policy to follow blind submission in redacting author's law school affiliations, especially given the controlling impact it can have for journals evaluating articles by their own faculty members.[294] Another approach, if one is concerned that broad identification as a fellow or junior faculty might hurt an author's overarching chances, would be to allow journals to indicate a preference for fellows or junior faculty in their applications, and then allow authors to disclose this on a case-by-case basis. Alternatively, we could simply embed this into the existing type-specific quota framework by adding to the type space types like "fellow" or "junior faculty member." Journals would thus be able to set quotas, e.g., aiming to ensure at least one publication slot is dedicated to an early career author. All of these modifications would enable journals to preserve their policies of privileging fellows or junior faculty submissions.

Authors often have preferences over publication dates and republication rights (e.g., no preference, must retain right, prefers right, specifies other). These preferences could be specified at the submission stage. There are several ways to cash out these preferences, roughly mirroring the above discussion on privileging fellows or junior faculty members. For instance, this could just be a box authors check at submission. Journals would then use this to inform their submitted rankings. Alternatively, one *could* probably embed this into type-specific quotas, but doing so would be more time-consuming than necessary. In either case authorial preference on publication dates and rights can be integrated consistently here.

VII. Conclusion

[291] Friedman, *supra* note 1, at 1315.

[292] See, e.g., Submissions, Harvard Law Review, https://harvardlawreview.org/homepage/submissions/; Article Submissions, Stanford Law Review, https://www.stanfordlawreview.org/submissions/article-submissions/.

[293] *See* Editorial Procedures and Policies, Econometrica, https://www.econometricsociety.org/publications/econometrica/information-authors/editorial-procedures-and-policies#:~:text=DISCUSSION%20BOARD%2C%20MEMBER%20COMMENTS%20ON%20PAPERS%20IN%20ECONOMETRICA,-Beginning%20with%20the&text=These%20comments%20will%20only%20be,be%20of%20interest%20to%20readers.

[294] Friedman, *supra* note 3, at 1302.

The law review submission process has long suffered from inefficiencies, inequities, and strategic manipulation, with the practice of expedited requests in particular undermining meaningful editorial review. While past reforms such as limited peer review, exploding offers, and greater faculty involvement have offered partial remedies, none would have fundamentally addressed the structural flaws of the current system. We propose to draw on lessons from other congested two-sided markets—including medical residencies and public school admissions—and propose a centralized matching mechanism that both eliminates the expedite game and better distributes the burdens of article selection. Incorporating features like blind submissions, optional peer review, and structured timelines, our proposal promises greater fairness, predictability, and efficiency for both authors and editors.

Of course, any reform faces substantial hurdles, including buy-in from top journals that currently benefit from the status quo, a risk of incomplete adoption, and concerns about editorial capacity under blind review. Yet history suggests that institutional change is possible when markets become sufficiently dysfunctional, and law reviews seem to be approaching that point. A centralized clearinghouse for submissions would not solve every problem, but it represents a pragmatic and implementable step toward aligning legal scholarship with the broader norms of academia while preserving the unique contributions of student editors.